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Donald Trump's Mass Deportations: California Lawmakers Set To Fight Back

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As the incoming administration prepares to take office, promising mass deportations, California lawmakers are taking proactive steps to defend the state's values and protect its immigrant community.

In a move aimed at ensuring the state is ready for any potential challenges from the federal government, the California legislature has kicked off a special session to provide additional resources for legal action if needed.

"We need to be prepared, and while we hope to collaborate and avoid litigation, we have a responsibility to California residents and taxpayers to make sure we're not caught flat-footed," Assemblymember Jesse Gabriel, who represents the San Fernando Valley and chairs the Assembly Budget Committee, told Newsweek.

California is perhaps uniquely equipped to square off against President-elect Donald Trump's new administration's plans, as the state possesses the second largest Department of Justice (DOJ) in the country.

Newsweek has contacted the Trump-Vance transition team for comment via email.

The special session was intended to tackle a range of issues, including protecting immigrant families, ensuring reproductive freedom, safeguarding civil rights, and securing California's financial interests, particularly in the face of threats to withhold federal funding.

Many Californians, including state lawmakers, are concerned about the potential implications for the state's policies, particularly on issues like immigration, and abortion.

Gabriel said: "I introduced two bills [Monday]. Collectively they would set aside $25 million for additional legal expenses that the Department of Justice could access if necessary. The idea here is that the special session would be narrow and focused on the provision of those additional resources and that we could debate and pass this legislation prior to January 20."

Some of the focus is on the potential hard-line immigration policies Trump has promised from Day One, including mass deportations.

At last estimates in 2022, California was home to at least 2.1 million undocumented migrants, who now face an uncertain future in the U.S.

"Because immigrants are such an important part of the fabric of the state of California there's already been a lot of action taken on that front during the prior administrations to help protect and support immigrant communities," Gabriel said.

During the previous Trump administration, Gabriel said California filed around 120 lawsuits fighting various policies, including around immigration.

"California has stepped up in the past, in terms of ensuring that state resources are not used to violate peoples, protect people's constitutional rights, to not be party to immigration enforcement that would go against California values," he said.

The Assemblymember also told Newsweek that this was not about circumventing border security, which he said California had played its part in enforcing.

Having a more secure U.S.-Mexico border and national immigration enforcement have become intertwined, particularly during the recent presidential election.

The GOP's message has been that President Joe Biden's policies led to open borders and an influx of criminal migrants, and that one of the only ways to deal with this problem is to remove the estimated 11 million undocumented migrants in the country.

As California navigates this uncertain political landscape, the state's Attorney General Rob Bonta laid out what rights immigrants have on Wednesday. The guidance was first issued during Trump's last term, in 2018.

"Many public institutions already have policies in place for how to respond to immigration enforcement authorities—and we advise those who do not to make a plan today," Bonta said in a statement.

"My office will continue to use the full force of the law and every tool at our disposal to protect the rights of California's immigrants—and we need staff at these critical locations to do the same."

The guidance, for courthouses, health care facilities, colleges and universities, K-12 schools, labor agencies, public libraries, and shelters is meant to keep immigration officials away from vulnerable migrants.

Los Angeles Police Department's new Chief, Jim McDonnell, told The Associated Press this week that his team was ready to protect migrants, adding that it has rules in place preventing officers from getting involved in immigration enforcement.

Fighting the federal government may not be as straightforward as it perhaps was between 2017 and 2021, however, with a changing court landscape which recently saw an appeals court overrule local authority in Washington state.

Trump's incoming border czar, Tom Homan, has also vowed to be tough on states and cities seeking to fight mass deportations, promising to send twice as many Immigration and Customs Enforcement (ICE) officers to Los Angeles—a sanctuary city.

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